

HOUSE BILL 934

By Fritts

AN ACT to amend Tennessee Code Annotated, Title 2,
relative to voting.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 2-7-112(a)(1), is amended by deleting the subdivision and substituting instead:

(A) A voter shall complete and sign an application for ballot, indicate the primary in which the voter desires to vote, if any, and present it to a precinct registrar. The application for ballot must include a space for the address of the voter's current residence, and the voter shall write or print such address on the application when the voter signs the application for ballot.

(B) At the time a voter presents an application for ballot, the voter shall present to the precinct registrar one (1) form of identification for voter identification that bears the name and photograph and residential address of the voter. The requirement to present one (1) form of identification that bears the name and photograph and residential address of the voter applies to persons voting pursuant to § 2-6-109; provided, however, that a person voting in accordance with § 2-6-401(a) and (b) or § 2-6-601 is not required to show an identification with a photograph and residential address of the voter.

(C) For purposes of verifying the person's identification on the application for ballot, "form of identification for voter identification" must:

(i) Have been obtained with documented proof of citizenship of the United States;

(ii) Include the voter's photograph, current residential address, and expiration date of the identification;

(iii) Indicate that the individual meets eligibility requirements for voting, including citizenship of the United States;

(iv) Accommodate for the permanently disabled and include a process for permanent identification; and

(v) Not be an identification card issued to a student by an institution of higher education.

(D) Using the computerized voter signature list or the electronic poll book, the registrar shall make a determination whether the voter's address is different from the address on the voter's permanent registration record or if the registration is in inactive status. If the voter has changed residence, or the voter's registration is inactive, the registrar shall follow the procedures for voting pursuant to §§ 2-7-140 and 2-7-141.

(E) If, upon verification of evidence of identification, it is found that the applicant is entitled to vote, the registrar shall initial the application, note the date of the election, the number on the voter's ballot application, and the primary or general election in which the voter applies to vote.

(F) If the applicant's signature is illegible, the registrar shall print the name on the application.

(G) The state coordinator of elections shall promulgate rules for training all election commissioners, election employees, election officials, and poll workers for procedures at the polls.

(H) The state coordinator of elections, in concurrence with the secretary of state, shall provide public access to information regarding how to obtain and the proper use of voter identification as required for the procedures to vote.

SECTION 2. Tennessee Code Annotated, Section 2-7-112(c), is amended by deleting the subsection.

SECTION 3. Tennessee Code Annotated, Section 2-7-112(a)(3)(A)(vi), is amended by deleting the language "punchcard or".

SECTION 4. Tennessee Code Annotated, Section 2-7-112(a)(3)(B)(i), is amended by deleting the following language:

When provisional ballots have been cast utilizing punchcard or optiscan technology, the counting of the provisional ballots shall be pursuant to rules promulgated by the state coordinator of elections.

and substituting instead:

When provisional ballots have been cast utilizing a paper ballot, either marked by hand or a ballot-marking device, and tabulated by optical scan technology, the counting of the provisional ballots must be pursuant to rules promulgated by the state coordinator of elections.

SECTION 5. Tennessee Code Annotated, Section 2-7-112(d), is amended by deleting the subsection and substituting instead:

(d) For purposes of processing the voter's application to vote pursuant to subdivision (a)(3), "verification of residential address" includes, but is not limited to, a Tennessee driver license, a residential lease agreement, a utility bill, or other document bearing the applicant's residential address. The "verification of residential address" must not include a digital source or sources. Such verification may be on the same or different identification from those listed in subsection (a).

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.